General Terms and Conditions (GTC)

Company	BeispielMobil Autovermietung GmbH	Document ID	AGB-2026-01-EN
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Notice: This document is solely a fictional portfolio and RAG example. It is not legal advice, a binding contract template, or an insurance product.

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§ 1 Scope and conclusion of contract

These General Terms and Conditions apply to rental agreements for passenger cars and light commercial vehicles of BeispielMobil Autovermietung GmbH. The rental agreement is concluded when the lessor confirms a booking or hands over the vehicle. Individual agreements in the rental contract take precedence over these Terms and Conditions.

These Terms and Conditions become part of the rental agreement only if reference is made to them when the contract is concluded and the renting person is given the opportunity to take note of their content. For this sample document, it is assumed that the Terms and Conditions are provided together with the booking confirmation.

§ 2 Rental requirements

As a rule, the driver must be at least 21 years old and have held a driving licence recognized in Germany for at least one year. A higher minimum age or a longer licence-holding period may be specified in the rental agreement for individual vehicle classes.

A valid driving licence and an official identity document must be presented when the vehicle is collected. The vehicle may only be driven by persons entered in the rental agreement as authorized drivers.

§ 3 Rental price, deposit and payment

The rental price is based on the rate confirmed in the rental agreement. Additional costs may apply in particular for additional drivers, accessories, excess mileage, refuelling or recharging, late return, extraordinary cleaning or missing accessories if agreed in the rental agreement or price list.

Before handover, a deposit may be reserved or collected. The amount, payment method and release are specified in the rental agreement. Outstanding claims may be taken into account in the final settlement.

§ 4 Vehicle handover and return

The vehicle is handed over with the condition, mileage and fuel or charge level documented in the handover report. Visible pre-existing damage must be reported before the journey begins. The vehicle must be returned at the agreed place and time.

If the vehicle is returned outside opening hours, the renting person's responsibility ends only when the vehicle and keys have come into the lessor's possession in accordance with the agreed return procedure. Personal belongings must be removed before return.

§ 5 Use of the rental vehicle

The rental vehicle must be treated with care and used in accordance with legal requirements. In particular, motorsport events, competition or test drives, subletting, non-agreed commercial passenger transport and use by drivers not entered in the rental agreement are prohibited.

Trips abroad may be limited to certain countries or made subject to prior approval. The vehicle must not be used if the driver is unfit to drive due to alcohol, drugs, improperly taken medication or other circumstances.

§ 6 Fuel, charging and accessories

For combustion-engine vehicles, the fuel policy agreed in the rental agreement applies; in the sample rate this is generally “full/full”. Electric vehicles must be returned with the agreed charge level. Charging cables, charging cards, keys, warning triangle and other supplied accessories must be returned in full.

Fuel or charge shortages may be charged according to the agreed price list plus a service fee. Missing or damaged accessories may be charged at the required replacement or repair cost.

§ 7 Accident, damage, theft and breakdown

In the event of an accident, theft, fire, wildlife damage or other significant damage, the lessor must be informed immediately. In the event of personal injury, significant property damage, theft or an unclear accident sequence, the police must be called. The renting person documents the incident and provides available details of parties involved, registration numbers, witnesses and the damage.

Unilateral admissions of liability or payments to third parties should be avoided. In the event of a breakdown, approval from the lessor or designated roadside assistance should generally be obtained before arranging repairs independently, insofar as this is reasonable.

§ 8 Insurance, liability reduction and deductible

The rental vehicle has the insurance cover stated in the rental agreement. An agreed liability reduction limits contractual liability per loss event to the stated deductible, provided the requirements of the selected protection package are met.

Liability reduction may be restricted in cases of intent and, subject to statutory and contractual provisions, in cases of gross negligence, unauthorized use or breach of material obligations. Details are contained in the document “Insurance.pdf”.

§ 9 Fines, tolls and additional costs

The person responsible is generally liable for traffic violations, tolls, parking charges or other usage-related fees incurred during the rental period. If the lessor must process owner inquiries or claims, an administration fee agreed in the price list may be charged where and to the extent legally permissible.

§ 10 Data protection and final provisions

Personal data are processed in particular for booking, contract performance, vehicle handover, billing, communication, claims handling and compliance with legal obligations. Details are contained in the document “Data Protection.pdf”.

Amendments and supplements to the rental agreement should be documented. German law applies unless mandatory statutory provisions provide otherwise. The invalidity of individual provisions does not affect the validity of the remaining provisions; statutory provisions apply in place of an invalid clause.

Legal reference framework for this example: German law on standard terms under sections 305 et seq. BGB; motor vehicle liability insurance under the Compulsory Insurance Act. The specific content has not been reviewed by a lawyer.